

26STCV11543 26STCV11543

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Case Number: 26STCV11543 Hearing Date: August 12, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

LISA BURGE,

vs.

SAC MUB1 HOTEL, LLC, et al.

Case No.:

26STCV11543

Hearing

Date: August 12, 2026

Specially

Appearing Defendant Colin Gray's motion to quash service of summons is granted.

Specially Appearing Defendant is dismissed from this action.

Specially

Appearing Defendant Colin Gray's and Defendants KHRG Sacramento LLC's, Kimpton

Hotel and Restaurant Group LLC's, Dunwoody Operations LLC's, Six Continents

Hotels, Inc.'s, and Intercontinental Hotels Group Resources, LLC's motion to quash Plaintiff Lisa Burge's May 15, 2026, Notice of Deposition and staying the taking of the depositions noticed therein and document production requested therein is granted.

Specially

Appearing Defendant Colin Gray's and Defendants KHRG Sacramento LLC's, Kimpton Hotel and Restaurant Group LLC's, Dunwoody Operations LLC's, Six Continents Hotels, Inc.'s, and Intercontinental Hotels Group Resources, LLC's request for sanctions Plaintiff and her counsel, Suzanne E. Rand-Lewis, jointly and severally, is granted in the reduced amount of \$5,250.00, payable within 20 days.

Specially

Appearing Defendant Colin Gray ("Gray") ("Specially Appearing Defendant") makes a special appearance for this Court to quash service of the summons and complaint served on him by Plaintiff Lisa Burge ("Burge") ("Plaintiff") on the basis that Gray, a resident of the United Kingdom, was not properly served pursuant to the Hague Service Convention and that this Court lacks personal jurisdiction over him due to the absence of constitutionally sufficient contacts with California. (Notice of Motion Summons, pg. 1; C.C.P. §418.10.)

Specially

Appearing Defendant makes a special appearance, and Defendants KHRG Sacramento LLC ("KHRG"), Kimpton Hotel and Restaurant Group LLC ("Kimpton"), Dunwoody Operations LLC ("Dunwoody"), Six Continents Hotels, Inc. ("Six Continents"), and Intercontinental Hotels Group Resources, LLC ("Intercontinental") (collectively, "Moving Defendants") move to quash Plaintiff's May 15, 2026, Notice of Deposition ("Notice") and stay the taking of the depositions noticed therein and document production requested therein. (Notice of Motion Depo, pg. 1; C.C.P. §2025.410(c).) Specially Appearing Defendant and Defendants move on the grounds that the Notice improperly seeks the deposition of Gray, a resident of the United Kingdom, who was never served with the Summons & Complaint in this matter, and over whom the Court has no jurisdiction, and improperly requires testimony from Defendants' PMQs pursuant to C.C.P. §2025.230 for 88 categories of information that are not described with reasonable particularity, not reasonably calculated to lead to the discovery of admissible evidence, and seek discovery of attorney-privileged communications, information that is protected by the right to privacy and requires production

of documents in 88 categories that are overly broad, unduly burdensome, not subject to discovery, and/or not reasonably calculated to lead to the discovery of admissible evidence. (Notice of Motion Depo, pg. 1.) Defendants seek monetary sanctions in the amount of \$7,000 against Plaintiff and her counsel, Suzanne E. Rand-Lewis. (Notice of Motion Depo, pg. 1; C.C.P. §§2023.010(a), (b), (c), (i).)

1. Motion to Quash Service of Summons

Requests
for Judicial Notice

Specially
Appearing Defendant's 5/13/26 request for judicial notice of the April 14, 2026, proof of service filed by Plaintiff is denied because this Court does not need to take judicial notice of filings on the instant docket.

Plaintiff's
7/30/26 request for judicial notice of (1) Excerpts from the Six Continents Limited Annual report and Financial Statements for the year ended 31 December 2025; (2) Defendant Gray's LinkedIn profile; (3) Excerpts from the IHG Code of Conduct; (4) Excerpts from the Chartered Institute of Internal Auditors Internal Audit Code of Practice; (5) Excerpts from IHG's Annual Report and Form 20-F 2025; and (6) Excerpts from the Six Continents Limited Annual report and Financial Statements for the year ended 31 December 2023, is denied as not subject to judicial notice.

Background

On
April 9, 2026, Plaintiff filed her operative Complaint against Specially Appearing Defendant, Moving Defendants, and various Non-moving Defendants for fourteen causes of action.

On
May 13, 2026, Specially Appearing Defendant filed the instant motion. Plaintiff filed her opposition on July 30, 2026. Specially Appearing Defendant filed his reply on August 5, 2026.

Motion
to Quash

“When

a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence.” (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568.)

When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868; see also Elkman v. National States Insurance Co. (2009) 173 Cal.App.4th 1305, 1312-1313 [“Where a nonresident defendant challenges jurisdiction by way of a motion to quash, the plaintiff bears the burden of establishing by a preponderance of the evidence that minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction.”].)

California's

long-arm statute permits a court to exercise personal jurisdiction on any basis consistent with state or federal constitutional principles. (C.C.P. §410.10.) “When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable.” (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 449, citations omitted.) Plaintiffs must meet their initial burden by a preponderance of competent and relevant evidence, as shown in affidavits and documentary evidence. (See Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232-1233.)

“Personal jurisdiction may be either general or specific. A nonresident defendant may be subject to the general jurisdiction of the forum if his or her contacts in the forum state are ‘substantial . . . continuous and systematic.’ In such a case, ‘it is not necessary that the specific cause of action alleged be connected with the defendant's business relationship to the forum.’ Such a defendant's contacts with the forum are so wide-ranging that they take the place of physical

presence in the forum as a basis for jurisdiction.” (Vons Companies, Inc., 14 Cal.4th at pgs. 445-446, citations omitted.) “Great care and reserve should be exercised when extending our notions of personal jurisdiction into the international field.” (Hoffman-La Roche, Inc. v. Superior Court (2005) 130 Cal.App.4th 782, 795-796, citing United States v. First National City Bank (USSC 1965) 379 U.S. 378, 404.)

“If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction, he or she still may be subject to the specific jurisdiction of the forum, if the defendant has purposefully availed himself or herself of forum benefits, and the ‘controversy is related to or ‘arises out of’ a defendant’s contacts with the forum.” (Id. at pg. 446, citations omitted.) The purposeful availment test is only satisfied if the defendant purposefully and voluntarily directs its activities toward California so that the defendant should expect, because of the benefits it receives, to be subject to jurisdiction here based on its contacts with California. (Snowney v. Harrah’s Entertainment, Inc. (2005) 35 Cal.4th 1054, 1062.) Purposeful availment occurs when a nonresident defendant purposefully directs its activities at California residents, deliberately engages in significant activities here, or creates “continuing obligations” between itself and California residents. (Id. at pg. 1063.)

“The crucial inquiry concerns the character of defendant’s activity in the forum, whether the cause of action arises out of or has a substantial connection with that activity, and upon the balancing of the convenience of the parties and the interests of the state in assuming jurisdiction.” (Vons Companies, Inc., 14 Cal.4th at pg. 448, citing Cornelison v. Chaney (1976) 16 Cal.3d 143, 147-148). Jurisdiction is proper when the defendant’s contacts proximately result from its actions that create a “substantial connection” with the forum state. (Hanson v. Denckla (1958) 357 U.S. 235, 253.)

“Before a . . . court may exercise personal jurisdiction over a defendant, the procedural requirement of service of summons must be satisfied.” (Strong v. Countrywide Homes Loans, Inc. (9th Cir. 2017) 700 Fed. App’x 664, 667; see also Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1439 [explaining that

“compliance with the statutes governing service of process is essential to establish that court’s personal jurisdiction over a defendant.”.)

California

law on service of process provides that the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters (“Hague Service Convention”) has “preemptive effect” regarding adequacy of service on parties living outside the United States. (See *Rockefeller Technology Investments (Asia) VII v. Changzhou SinoType Technology Co., Ltd.* (2020) 9 Cal.5th 125, 138; see also C.C.P. §413.10 [“a summons shall be served on a person . . . outside the United States, as provided in this chapter . . . subject to the provisions of the . . . Hague Service Convention.”].)

“Failure

to comply with the Hague Service Convention procedures voids the service even though it was made in compliance with California law. This is true even in cases where the defendant had actual notice of the lawsuit.” (*Rockefeller*, 9 Cal.5th at pg. 138, quoting *Kott v. Superior Court* (1996) 45 Cal.App.4th 1126, 1136; see also *Whyenlee Industries Ltd. v. Superior Court* (2019) 33 Cal.App.5th 364, 368 [“Failure to comply with the Convention renders the service void, even if the defendant has actual notice of the lawsuit.”].)

The

Hague Service Convention provides for a “system whereby each participating country will organize and designate a ‘Central Authority’ to receive, and to reject or to execute, and to certify requests for service of process from parties in other participating states.” (*Balcom v. Hiller* (1996) 46 Cal.App.4th 1758, 1763.) Under the Hague Service Convention, “[t]he receiving country can impose certain requirements with respect to those documents . . . If the documents comply with applicable requirements, the [Hague Service] Convention affirmatively requires the Central Authority to effect service in its country.” (*Inversiones Papaluchi S.A.S. v. Superior Court* (2018) 20 Cal.App.5th 1055, 1065 [vacating order that denied motion to quash].)

The

Court takes judicial notice of the fact that the designated “Central Authority” through which service must be made on residents of the United Kingdom is the Senior Master, Royal Courts of Justice in Strand, London. (See official website of Hague Conference on Private International Law, <https://www.hcch.net/en/states/authorities/details3/?aid=278>.)

Here,

Specially Appearing Defendant Colin Gray is, and for more than ten years has been, a resident of the United Kingdom, and has been employed by a United Kingdom limited liability company that is not a party to this action. (Decl. of Gray ¶12.) As such, service on Gray was required to be accomplished in compliance with the Hague Service Convention in order to be effective.

Plaintiff

did not serve Gray through the Hague Service Convention and instead purported to serve him by Federal Express at an address in Atlanta, Georgia, according to the Proof of Service Plaintiff filed on April 14, 2026. (4/14/26 Proof of Service.) Service was therefore ineffective and must be quashed. (See e.g., *Kremmerman v. White* (2021) 71 Cal.App.5th 358, 374 [stating the trial court did not obtain personal jurisdiction over [defendant] due to improper service of the summons and complaint].) Plaintiff does not dispute in her opposition that Gray is a foreign national. Plaintiff merely argues that service was proper and that Gray made a general appearance. Neither argument is availing.

With

regard to Plaintiff's "general appearance" argument, Gray has filed a motion under C.C.P. §418.10 to challenge service of process and personal jurisdiction and therefore cannot be said to have waived any right to do so. Further, Grey has not filed any demurrer or motion to strike. Gray has not filed any Notice of Appearance in this matter. Plaintiff's argument that he did so is based solely on the fact that his name was listed as one of the represented parties on objections that were filed by other Defendants after this Motion to Quash was filed. The fact that Gray was listed as one of the represented parties on these written objections could not constitute a general appearance under any standard, but even if Gray had filed a Notice of Appearance, it could not be deemed a general appearance or a waiver of the right to contest service and personal jurisdiction under C.C.P. §418.10. (C.C.P. §418.10 ["No motion under this section . . . shall be deemed a general appearance . . . no act by a party who makes a motion under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section."].)

Plaintiff fails to

demonstrate by a preponderance of evidence that Gray has sufficient contacts with California for this Court to exercise general jurisdiction over him. Plaintiff points to Grey's LinkedIn profile, specifically his title of senior Risk & Assurance; the express direction that unresolved hotline complaints be escalated to him; his name and title on the California-directed closing communication; his listing in the internal "Assignments & Access" field; and evidence that his global function supervised or supported personnel handling California complaints. Plaintiff's purported evidence is not sufficient. Plaintiff does not challenge

the fact that Gray has never worked or resided in California, that he lives and works in the United Kingdom, that he has never owned property or bank accounts in California, that he has never used a California mailing address, that he has never been a party to any contract with a person or entity in California, and that he has never held any licenses, certificates, or permits issued by any governmental authority in California. (Decl. of Gray

¶4.) Nor does Plaintiff dispute the fact

that Gray has never even been to California other than once in the early 1990s for a family holiday and once again in 2018. (Decl. of Gray ¶4.) There is, accordingly, no basis for the exercise of general jurisdiction over Grey. (See e.g., *Mansour v. Superior Court* (1995) 38 Cal.App.4th 1750, 1758 [finding no "evidence indicating [defendants] have wide-ranging, systematic or continuous contacts with California permitting this state to exercise general jurisdiction over them" because the defendants "denied living, maintaining an office, doing business or owning property in California"].)

Plaintiff also fails to demonstrate

by a preponderance of evidence that Gray has sufficient contacts with California for this Court to exercise specific jurisdiction over it. Plaintiff's declaration concedes that Gray was never her supervisor or manager and was never involved with her employment.

(Decl. of Burge ¶48; see Decl. of

Gray ¶15.) Plaintiff's entire argument to show a basis

for

specific jurisdiction over Gray is that his name appeared on a post-closure satisfaction survey link that was sent to her after she had filed a web hotline complaint, stating:

Thank you for speaking up through IHG Confidential Reporting Hotline.

I would appreciate any feedback you are comfortable to provide about your experience with the process so that we can continue to improve our capabilities. The following link (please copy and paste into your web browser to access) will take you to a very short survey: <https://forms.office.com/r/5jxzyCvWJj>.

All information you provide will be anonymous. As this is focused on the hotline process, we will not ask you for details of the specific case.

(Decl. of Burge ¶12, Exh. M.) Here, sending a satisfaction survey link about how Plaintiff felt about how her claim was processed is insufficient to establish specific jurisdiction over Gray. (See e.g., *Burdick v. Superior Court* (2015) 233 Cal.App.4th 8 ["We hold that posting defamatory statements about a person [that] . . . resides in the forum state, is insufficient in itself to create the minimum contacts necessary to support specific personal jurisdiction in a lawsuit arising out of that posting."].)

Accordingly, Specially Appearing Defendant's motion to quash service of summons is granted.

Conclusion

Specially Appearing Defendant's motion to quash service of summons is granted – the Court has not obtained personal jurisdiction over Colin Gray by virtue of Plaintiff's sending a copy of the summons and complaint to IHG's offices in Atlanta. Moreover, Plaintiff has not established that Mr. Gray has sufficient contacts with California in his personal capacity such that he is subject to jurisdiction here. Specially Appearing Defendant is therefore dismissed from this action without prejudice.

Moving Party to give notice.

2.

Motion to Quash Deposition of PMQs

Meet

and Confer

A party

moving to stay the taking of a deposition and quashing the deposition notice must also file a meet and confer declaration under C.C.P. §2016.040. (C.C.P. §2025.410(c).

Specially

Appearing Defendant's and Moving Defendants' counsel declares that Plaintiff's counsel had agreed to meet and confer with her telephonically, but shortly before the call was to begin, Ms. Rand-Lewis stated in an email that she would not participate in the meet and confer on grounds that defense counsel had failed to provide dates certain on which defense counsel would produce Defendants for deposition and produce documents on "jurisdictional discovery" in response to the Notice of Deposition. (Decl. of Pelliconi ¶6.) Specially Appearing Defendant's and Moving Defendants' counsel's meet and confer declaration is sufficient under the statute. Accordingly, the Court will consider the instant motion.

Background

On May 15, 2026, Plaintiff's counsel served a notice of deposition on Specially Appearing Defendant and the PMQs of Moving Defendants, for remote depositions on May 28, 2026.

(Decl. of Pelliconi ¶2, Exh. A.) On

May 15, 2026, Moving Defendants and Specially Appearing Defendant filed their objections to Plaintiff's notice of deposition.

(Decl. of Pelliconi ¶3, Exh. B.)

Specially Appearing Defendant and Moving Defendants

filed the instant motion on May 27, 2026.

Plaintiff filed her opposition on July 30, 2026. Specially Appearing Defendant and Moving Defendants filed their reply on August 5, 2026.

Discussion

a. Specially

Appearing Defendant

A defendant named in a lawsuit has no duty to

respond to it by way of responsive pleading, discovery responses or otherwise until and unless service is properly effected. (See C.C.P. §410.50; Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466-1467 ["[a]ppellant was under no duty to act upon a defectively served summons"]; Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1439 [explaining that "compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant."].)

As the Court stated in its ruling on Specially Appearing Defendant's motion to quash service of summons, Gray is, and at all relevant times has been, a resident of the United Kingdom, and was required to be served through the Hague Service Convention, which was not done. Plaintiff's Notice of Deposition was ineffective to require Gray to submit to a deposition in this matter or to produce the requested documents.

Plaintiff also argues that the notice was properly served on Specially Appearing Defendant because she requests jurisdictional discovery. In order to obtain leave of Court to conduct jurisdictional discovery as to Gray in connection with the Motion to Quash Service, Plaintiff would have to make a specific showing that the discovery is likely to lead to the production of evidence establishing jurisdiction over him. (See Preciado v. Freightliner Custom Chassis Corporation (2023) 87 Cal.App.5th 964, 973 [affirming order granting motion to quash service, dismissing nonresident defendant from action, and denying Plaintiff's request to conduct jurisdictional discovery; "Plaintiffs did not demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction."].) Here, Plaintiff has failed to make the appropriate showing that discovery is likely to lead to the production of evidence establishing jurisdiction over Gray.

Accordingly, Specially Appearing Defendant's motion to quash the deposition served on him is granted.

b. Moving
Defendants

C.C.P. §2025.230 provides:

If the deponent named is not a natural person, the deposition notice shall describe with reasonable

particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.

(C.C.P. §2025.230.)

Plaintiff's

argument in opposition that the motion is moot is incorrect. The relief sought by Moving Defendants has the continuing effect of preventing Moving Defendants from responding to potential future notices that are not made with sufficient particularity, are overbroad, or are burdensome.

Here, Plaintiff's Notice is overly burdensome and fails to meet the particularity requirement for a deposition under this section. One such request, No. 3, contains 39 separate categories of information that are compound in nature. Further, Plaintiff's requests must be tailored to the individual Defendants from which the specific document is sought. It is irrelevant to include a request from Dunwoody pertaining to "the facts concerning whether Plaintiff's complaint was communicated to Nikki Glass, Jamie Jacobs, Claire Kapp, Kristin Uribe, or any other person at the Kimpton Sawyer Hotel, including when, by whom, in what manner, and what each person was told." (Notice, No. 10.)

Accordingly, Moving Defendants' motion to quash is granted.

Sanctions

Specially Appearing Defendant and Moving Defendants request sanctions against Plaintiff and her counsel of record, Suzanne E. Rand-Lewis, jointly and severally, in the total amount of \$7,000.00 for misuse of the discovery process.

The Court grants Specially Appearing Defendant's and Moving Defendants' request in the reduced amount of \$5,250.00, pursuant to C.C.P. §2023.010(b), calculated as follows:

$\$875/\text{hour} \times 6 \text{ hours} = \$5,250.00$

Sanctions

are payable within 20 days.

Conclusion

Specially Appearing Defendant's and Moving

Defendants' motion to quash the Deposition Notice is granted.

Specially Appearing Defendant's and Moving

Defendants' request for sanctions against Plaintiff and her counsel of record, Suzanne

E. Rand-Lewis, jointly and severally, is granted in the reduced amount of

\$5,250.00, payable within 20 days.

Moving Party to give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court